

Human Rights Council (HRC)

***Promoting human rights in
the context of immigration
policies and deportations***

-Research Report-

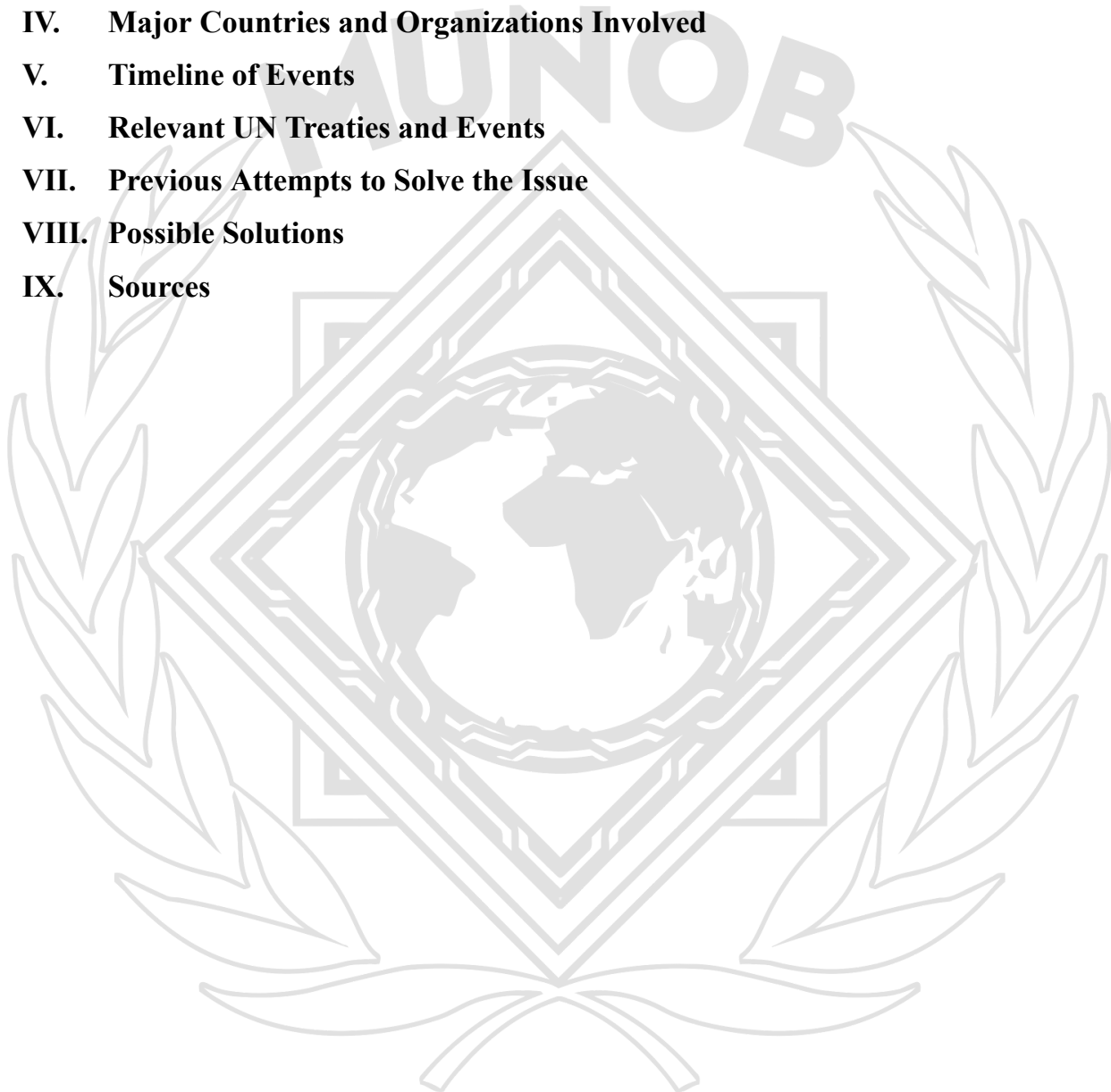
-Chairs-

Munteanu Ilinca

Ema Dabuleanu

Table of Contents

- I. Introduction**
- II. Definition of Key Terms**
- III. Background Information**
- IV. Major Countries and Organizations Involved**
- V. Timeline of Events**
- VI. Relevant UN Treaties and Events**
- VII. Previous Attempts to Solve the Issue**
- VIII. Possible Solutions**
- IX. Sources**



I. Introduction

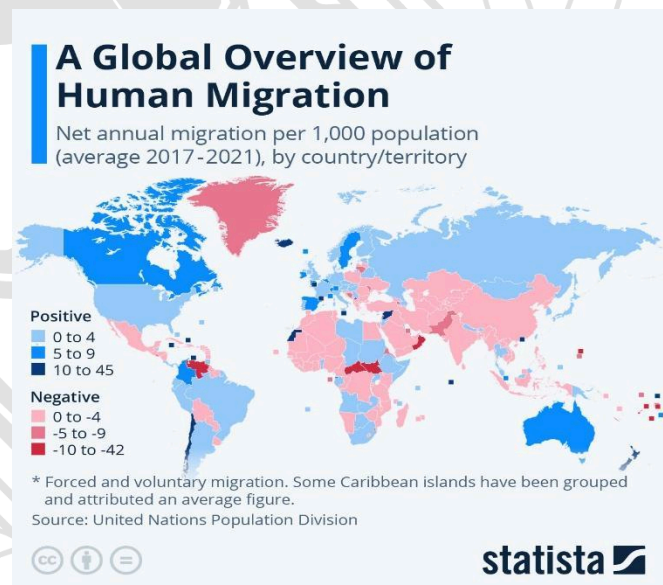
"Migrants and refugees are not pawns on the chessboard of humanity. They are children, women, and men who leave or who are forced to leave their homes for various reasons, who share a legitimate desire for knowing and having, but above all for being, more."

— Pope Francis

Migration is one of the world's most pressing issues today, as millions of people leave their home countries every year in search of safety, opportunity, or a better quality of life. Every nation has the right to determine who enters and remains in its territory by establishing its own rules at its borders; however, that right is limited. As recognized by longstanding international agreements through measures like the UN Convention Relating to the Status of Refugees of 1951 and the UN Declaration of Human Rights, every person has certain fundamental rights and entitlements under international law regardless of their immigration status.

In order for governments to uphold human rights while enforcing immigration laws (including deportation), migrants must be treated equitably, fairly and with dignity throughout any legal processes that could significantly affect their lives. Several issues exemplify the conflict between state sovereignty and the obligation of states to respect the human rights of their own citizens: the separation of family members; the detention facilities where many people are detained; the rights of a detained person to

receive legal services; and the stress associated with being expelled from a safe country back to a country that is prone to violence and instability. The number of people migrating around the world keeps increasing dramatically and creates an incredible challenge for many governments and organizations such as the United Nations to strike a balance between enforcing their own immigration laws and supporting everyone's universal human rights.



II. Definition of Key Terms

Migration

The movement of people across borders or within a country, often bringing them under immigration laws and human rights protections. Migration can be voluntary (for work or education) or forced (due to war or persecution).

Refugee

A person who has been granted international protection due to a well-founded fear of persecution based on factors such as race, religion, or political opinion, as defined by the 1951 Refugee Convention, which obliges states to ensure their safety and rights.

Non-refoulement

A legal principle that forbids countries from sending individuals back to places where they face serious threats to their life or freedom.

Asylum Seeker

An individual who has left their country of origin and formally applied for international protection, but whose claim has not yet been adjudicated. During this period, they are entitled to fair procedures, protection from refoulement, and humane treatment under international human rights law.

Immigration Detention

Immigration detention is the administrative practice of confining individuals for purposes such as identity verification or removal. International standards require that detention be lawful, necessary, and proportionate, used only as a last resort, and conducted under conditions that respect human dignity and fundamental rights.

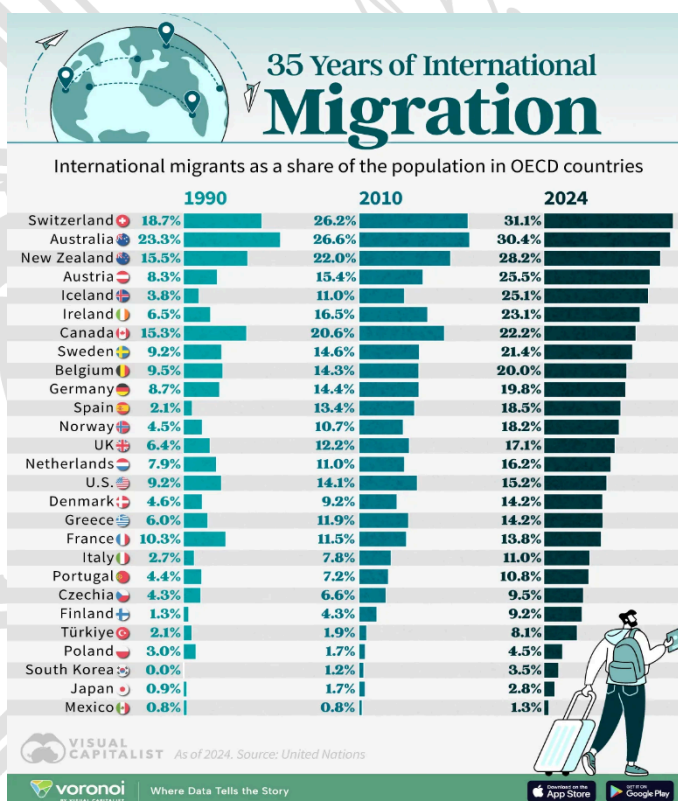
Deportation

The formal process through which a state expels a non-citizen from its territory due to violations of immigration laws or denied protection claims. It must be implemented in accordance with human rights obligations, particularly respecting non-refoulement and ensuring access to fair legal procedures.

III. Background Information

Since the end of World War II, there has been a growing awareness of human rights issues associated with immigration policies and deportations as international migration has increased. The issue of large-scale population displacement during the war and after it made it apparent that there was a need to create an international system of protection for people being forced to leave their country due to persecution or other reasons. This system of protection was formalized in part through the adoption of the Universal Declaration of Human Rights and the 1951 Refugee Convention, which outlined the fundamental rights of everyone in the world, including those who migrate and that those who are fleeing persecution deserve to be protected.

As worldwide levels of migration have continued to increase over the last several decades as a result of issues related to globalization, economic inequality, armed conflict, and environmental changes, states have established increasingly complex immigration systems to manage the entry, residence, and removal of non-citizen migrants. Meanwhile, international organizations, including the United Nations, have begun playing significant roles in advocating and establishing monitoring mechanisms for human rights standards in the governance of migration. This impact has necessitated international cooperation and coordination to address the complex challenges posed by religious extremist groups. The migrant crisis has received more attention in recent years because of the increasing number of refugees and migrants, most of whom are fleeing conflicts and areas with a lack of stability. As a result, there is more debate around trying to find a balance between the security of national borders, while fulfilling humanitarian obligations to people fleeing their countries. It is an ongoing challenge for the international community to make sure that human rights are promoted in relation to immigration policies and deportation and to continuously work toward ensuring that enforcement actions do not undermine the dignity or the rights of any individual.



IV. Major Countries and Organizations Involved

United States of America

The U.S. history of human rights in immigration crises is contradictory. While it has provided refuge for millions, it has also established one of the world's largest detention systems, consistently used deterrence policies that deny humanitarian protection, and often failed to protect the dignity of those arriving at its borders.

In 2025, the United States reached a record 53.3 million immigrants in January, but the number declined by over one million by June—the first drop since the 1960s—due to increased departures and deportations. Refugee admissions fell sharply after policy changes, dropping from about 9,000 per month to just 1,226 total between February and December. While border apprehensions hit a record low, immigration enforcement intensified, with higher detention levels, a 74% rise in detainees, and a doubling of detention centers by the end of the year.

United Mexican States

In 2025, immigration in Mexico is characterized by a significant reduction in northward migration flows due to heightened enforcement, alongside an increase in the number of migrants staying in Mexico, either for transit, asylum, or forced return. Following policy changes in both the U.S. and Mexico in early 2025, migrant encounters at the U.S.-Mexico border fell to their lowest level in over 50 years.

As part of the CHMS, Mexico extended its flagship social program to countries across the region, including Belize, Colombia, Cuba, Ecuador, El Salvador, Haiti, Honduras and Panama. The government pledged to expand regular labour migration pathways, promote job creation, and provide more regular employment options. To support this initiative, Mexico launched a digital platform, *México te emplea* ("Mexico employs you"), to integrate migrants and refugees into the labour market. The platform offers job openings, tools, and resources on labour rights, training, and vocational development. By September 2024, more than 6000 jobs had been opened to migrants in cooperation with over 380 companies.

Republic of Türkiye

Turkey is one of the world's largest refugee-hosting countries, housing over 3.9 million migrants, primarily Syrian refugees under temporary protection. Situated as a key transit point between Asia and Europe, Turkey also hosts over 1.3 million foreign residents with residence permits. The country

requires strict visa compliance, offers citizenship by investment, and utilizes the Presidency of Migration Management to handle the high volume of international protection seekers.

Türkiye hosts around 3.9 million migrants and refugees, over 90% of whom are Syrians who fled the ongoing conflict in Syria. About 3.6 million Syrians are registered under Temporary Protection, alongside other nationalities seeking asylum or international protection. Türkiye was central to the 2015 Mediterranean migration crisis, when over 850,000 migrants crossed into Greece. Although arrivals dropped to 186,786 by 2017, migration flows remain significant. The country continues to face major challenges related to irregular migration by land and sea. In response, government bodies, international organizations, and humanitarian groups are working together to provide assistance and improve migration management strategies.

Federal Republic of Germany

The historical significance of immigration to Germany alongside its former predecessor states has always been an important aspect of its history. Historically, there were many migrations from other European countries (primarily Poland, Italy, and Austria). Today, most immigrants that move to Germany come from countries outside of Europe (Turkey, Syria, Iraq and parts of Africa and Asia). More than 1 million people have moved to Germany every year since 2012, with the numbers exceeding 2 million in 2015 and again in 2022, making it the second most popular country for immigrants after the USA. As of 2024, approximately 17.4 million (20.9% of the population) live in Germany with a father or mother who were born in another country (1st generation), whereas the total number of migrants living in Germany (obtaining any or all of their in whole or in part, such as grandparents) is approximately 25.2 million (30.2% of a total population of 83.5 million).

ICE

U.S. Immigration and Customs Enforcement (ICE) is the primary agency responsible for detention and deportation, but its practices have raised significant human rights concerns. Reports document unsafe conditions, medical neglect, and a record 32 deaths in custody in 2025, alongside tactics like arresting U.S. citizens and conducting raids at schools and churches. In response, proposed reforms such as the ICE Accountability Act seek to establish independent oversight, while activists and scholars increasingly call for abolishing the agency. These debates highlight a fundamental tension between federal immigration enforcement and the protection of due process and human dignity within the U.S. system.

V. Timeline of Events

Date	Event
1951	1951 Refugee Convention establishes refugee protections Defined who qualifies as a refugee and protected them from forced return (<i>non-refoulement</i>), a key principle in deportation policies.
1967	Protocol expands the Refugee Convention globally Expanded protections globally, ensuring refugee rights apply beyond Europe and earlier time limits
1990	International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families adopted Focused on protecting migrant workers from exploitation and ensuring fair treatment, regardless of legal status.
2001	September 11 attacks lead to stricter immigration policies raising concerns about balancing security with migrants' human rights.
2015	European Refugee Crisis begins Highlighted challenges in protecting asylum seekers and ensuring humane treatment during mass migration.
2016	EU–Turkey Migration Agreement Aimed to manage migration flows, but raised debates about safe returns and human rights protections
2018	Global Compact for Migration adopted by the United Nations Promoted safe, orderly migration and emphasized human rights in migration governance
2020– 2022	COVID-19 pandemic impacts migration and border policies Border closures and deportations raised concerns about access to asylum and health protections

Date	Event
	Ongoing global debates on immigration, detention, and deportation policies
2020s	Continued global discussions focus on humane immigration policies, detention conditions, and fair deportation practices

VI. Relevant UN Treaties and Events

Year	Treaty
1948	Universal Declaration of Human Rights
1951	1951 Refugee Convention
1967	Protocol Relating to the Status of Refugees
1966	International Covenant on Civil and Political Rights
1966	International Covenant on Economic, Social and Cultural Rights
1990	International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families

VII. Previous Attempts to Solve the Issues

In recent decades, the United Nations has played a central role in promoting international cooperation. A key development was the 2018 Global Compact for Safe, Orderly and Regular Migration, which aimed to create a coordinated global approach based on safety, dignity, and human rights. Similarly, the Global Compact on Refugees focuses on improving responsibility-sharing among states.

Regional Agreements

At the regional level, agreements such as the EU–Turkey deal between the European Union and Turkey have attempted to manage migration flows by reducing irregular entry into Europe. However, these measures have been criticized for potentially undermining human rights, particularly in relation to asylum access and returns.

National Policies and Enforcement

Individual states have implemented various measures, including stricter border controls, expanded detention systems, and increased deportations. Countries such as the United States and Australia have adopted enforcement-focused approaches, including detention centers and offshore processing,

which have raised concerns about human rights violations.

VIII. Possible Solutions

Ensuring Fair and Efficient Asylum Procedures

Asylum systems are critical for safeguarding Human Rights, especially with so many nations experiencing lengthy backlogs, delays in processing, and erratic decision-making that lead to long periods of anxiety for asylum seekers. In order for Governments to reduce the time it takes to process asylum requests, they must provide sufficient administrative resources, guarantee that asylum seekers will have access to competent legal representation, and provide interpreters for those who do not speak the language of the country in which they are applying. In addition, a transparent and well-regulated asylum system will lead to a reduced risk of an asylum seeker being wrongfully removed from their country and will result in more thorough assessments of their protection claims. Finally, judicial review should be increased so that decisions made by administrative bodies can be challenged effectively in a timely manner.

Limiting the Use of Detention

There has been a growing concern regarding the excessive use of Immigration Detention and its implications on Human Rights. States should use an alternative to detention that allows an individual to remain in their community while waiting on the outcome of their case. Alternative methods are more cost-effective and more beneficial than detention options such as reporting requirements, bail, and residence requirements. Detention must occur only when it is absolutely necessary and for the least period of time possible, under humane conditions. There are many organizations, such as UNICEF, that support the total prohibition of children's detention-related migration.

Protecting Families and Vulnerable Groups

Policies on immigration must place special emphasis on protecting the most vulnerable people (e.g. children, victims of human trafficking, and individuals with special medical needs). Additionally, the government must develop immigration policies that place the greatest weight on ensuring children's rights are protected in any decision affecting them. Family unity must also be maintained whenever possible, with separation being only used in very limited circumstances. Additionally, governments must ensure that all vulnerable migrants have access to both health care and educational/socioeconomic resources.

Implement Pre-Deportation Risk Assessment Protocols

Require independent, non-partisan evaluations before deporting anyone to countries with documented human rights abuses, including torture, gang violence, or political persecution. This would prevent the deportation of asylum-seekers and other vulnerable individuals to places where they face credible threats to life or freedom.

IX. Sources

Background information

- <https://cglj.org/human-rights-law/thematic-research-guides/immigration-migrants-rights/>
- <https://www.icmpd.org/file/download/63373/file/ICMPD%2520Migration%2520Outlook%25202025.pdf>
- <https://www.ohchr.org/en/migration/international-standards-governing-migration-policy>
- <https://europe.ohchr.org/news-events/news/guidance-un-human-rights-mechanisms-human-rights-migrants>
- <https://www.ohchr.org/en/migration/about-migration-and-human-rights>
- <https://www.iom.int/resources/international-migration-and-human-rights-stefanie-grant>
- [https://www.europarl.europa.eu/RegData/etudes/BRIE/2026/782643/EPRS_BRI\(2026\)782643_EN.pdf](https://www.europarl.europa.eu/RegData/etudes/BRIE/2026/782643/EPRS_BRI(2026)782643_EN.pdf)
- <https://www.icj.org/wp-content/uploads/2012/08/migration-and-international-human-rights-law-practitioners-guide-2011-eng.pdf>
- <https://www.unhcr.org/sites/default/files/legacy-pdf/3e59de764.pdf>
- <https://www.tandfonline.com/doi/full/10.1080/16544951.2021.1926083>
- <https://www.law.ox.ac.uk/echr-immigration-control/european-convention-human-rights-and-immigration-control-uk-informing>

Countries and Organizations involved

- <https://turkiye.iom.int/migration-turkiye>
- <https://www.pewresearch.org/short-reads/2026/02/02/migrant-encounters-at-the-us-mexico-border-are-at-their-lowest-level-in-more-than-50-years/>
- <https://www.bbc.com/news/articles/cp8wd8938e80>
- <https://www.unhcr.org/sites/default/files/legacy-pdf/3ae6a0c74.pdf>
- <https://www.cato.org/policy-analysis/brief-history-us-immigration-policy-colonial-period-present-day>
- <https://library.law.howard.edu/civilrightshistory/immigration/history>

- <https://www.ohchr.org/en/migration/regular-migration-pathways>
- <https://www.pewresearch.org/short-reads/2026/02/02/migrant-encounters-at-the-us-mexico-border-are-at-their-lowest-level-in-more-than-50-years/>
- https://en.wikipedia.org/wiki/Immigration_to_Germany

Timeline of events

- <https://www.history.com/articles/immigration-united-states-timeline>
- <https://immigrationhistory.org/timeline/>
- <https://www.striking-women.org/module/migration/history-migration>

Relevant UN treaties and events

- <https://www.ohchr.org/en/instruments-mechanisms/instruments/international-convention-protection-rights-all-migrant-workers#:~:text=International%20Convention%20on%20the%20Protection,Members%20of%20Their%20Families%20%7C%20OHCHR>
- <https://www.globaldetentionproject.org/international-law/treaties-and-protocols>



